

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lauren Haydin	Team: Squad #17	CCRB Case #: 202310528	☒ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/13/2023 11:00 PM, Thursday, 04/11/2024 10:00 AM	Location of Incident: In front of 311 West 34th Street, 100 Church Street	18 Mo. SOL 10/11/2025	Precinct: 01		
Date/Time CV Reported Thu, 10/19/2023 10:01 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/07/2023 11:20 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Yakov Kaushanskiy	05266	938755	MS SU CRT
2. SGT Courtney Hamlin	05233	932165	MS SU CRT
3. PO Dylan Gilliam	27098	971958	MTS PCT
4. CPT Miguel Figueroa	00000	939822	MTS PCT
5. PO Kenneth Ramirez	24698	970116	MTS PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Brian Brandefine	21864	963880	MS SU CRT
2. PO Andrew Mahoney	26691	971127	MTS PCT
3. PO Jonathan Castro	26712	972562	MTS PCT
4. PO Nazir Nazary	26724	971164	MTS PCT
5. PO Jose Reyes	26257	967289	009 PCT
6. LT Alexis Valdez	00000	942635	PBMS SU PST
7. DTS Lily Graham	03003	966080	MS SU CRT
8. LT Joseph Algerio	00000	944312	PBMS SU PST
9. PO Jonathan Guallpa	11350	970572	MTS PCT
10. PO Lucas Alves	08937	954480	MS TIMES SQ
11. SGT Adriano Contreras	02845	934681	017 PCT
12. PO Carmen Qin	12666	970106	MTS PCT
13. PO Christopher Fabrizio	28487	973379	MS TIMES SQ
14. PO Andrew Yoli	21269	973863	MS TIMES SQ
15. PO Eric Kim	00787	956022	MS TIMES SQ
16. PO Billy Chen	30584	973306	MS TIMES SQ
17. SGT Jose Cabagrillo	01696	952522	MTS PCT
18. PO Brittany Shaneberger	24317	972249	MTS PCT
19. DI Aaron Edwards	00000	932593	MTS PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . DTS Yakov Kaushanskiy	Force: On October 13, 2023, at 311 West 34th Street in Manhattan, Detective Yakov Kaushanskiy used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . DTS Yakov Kaushanskiy	Abuse: On October 13, 2023, at 311 West 34th Street in Manhattan, Detective Yakov Kaushanskiy threatened § 87(2)(b) with the use of force.	B . Within NYPD Guidelines
C . DTS Yakov Kaushanskiy	Discourtesy: On October 13, 2023, at 311 West 34th Street in Manhattan, Detective Yakov Kaushanskiy spoke discourteously to § 87(2)(b)	C . Substantiated
D . CPT Miguel Figueroa	Abuse: On October 13, 2023, at 311 West 34th Street in Manhattan, Captain Miguel Figueroa threatened An individual with the use of force.	D . Substantiated
E . DTS Yakov Kaushanskiy	Untruthful Stmt.: On April 11, 2024, at 100 Church Street in Manhattan, Detective Yakov Kaushanskiy provided a false official statement to the CCRB.	E . Substantiated
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On October 19, 2023, § 87(2)(b) filed this complaint over the phone with the Internal Affairs Bureau. On November 7, 2023, the CCRB received this complaint.

On October 13, 2023, at approximately 11:00 P.M., approximately 30 police officers responded to a large crowd exiting the Manhattan Center, located at 311 West 34th Street in Manhattan, following a concert at the venue. § 87(2)(b) § 87(2)(b) brother, engaged in a physical altercation with an unknown individual and was placed under arrest. While officers effected § 87(2)(b) arrest, § 87(2)(b) approached Detective Yakov Kaushanskiy of Midtown South Specialized Unit Community Response Team and Det. Kaushanskiy pushed him backwards with two hands (**Allegation A: Physical Force, within NYPD guidelines**). Det. Kaushanskiy then removed his taser and briefly angled it towards § 87(2)(b) chest (**Allegation B: Abuse of Authority, within NYPD guidelines**). While § 87(2)(b) yelled and gesticulated at him, Det. Kaushanskiy said, “Point that fucking finger at me one more time” (**Allegation C: Discourtesy, substantiated**).

Captain Miguel Figueroa of Midtown South Precinct approached an unknown male sitting on the hood of a vehicle, pointed his taser at him and instructed him to get off the vehicle (**Allegation D: Abuse of Authority, substantiated**).

On April 11, 2024, at approximately 10:00 A.M., Det. Kaushanskiy provided a false official statement to the CCRB during his interview (**Allegation E: Untruthful Statements, substantiated**).

§ 87(2)(g), § 87(4-b)

The CCRB received cellphone footage from IAB, as provided to them by § 87(2)(b) of the incident captured by an unknown individual from the Internal Affairs Bureau (**Board Review 01-02**). The CCRB received 34 Body-Worn Camera (BWC) videos of the incident (**Board Review 03**).

§ 87(2)(b) declined to participate in the investigation by providing a statement. Due to § 87(2)(b) lack of statement, hearsay allegations brought forth by § 87(2)(b) in his CCRB interview on behalf of § 87(2)(b) were not investigated by the CCRB.

Findings and Recommendations

Allegation (A) Force: On October 13, 2023, at 311 West 34th Street in Manhattan, Detective Yakov Kaushanskiy used physical force against § 87(2)(b)

Allegation (B) Abuse of Authority: On October 13, 2023, at 311 West 34th Street in Manhattan, Detective Yakov Kaushanskiy threatened § 87(2)(b) with the use of force.

Allegation (C) Discourtesy: On October 13, 2023, at 311 West 34th Street in Manhattan, Detective Yakov Kaushanskiy spoke discourteously to § 87(2)(b)

Allegation (E) Untruthful Statement: On April 11, 2024, at 100 Church Street in Manhattan, Detective Yakov Kaushanskiy provided a false official statement to the CCRB.

In his CCRB statement (**Board Review 04**) § 87(2)(b) said that on October 13, 2023, at approximately 11:00 p.m., he approached a group of officers and § 87(2)(b) in front of 311 West 34th Street in Manhattan. § 87(2)(b) had been placed under arrest following a physical altercation in which he was involved. Det. Kaushanskiy approached § 87(2)(b) and pushed

him backwards with both hands on his upper chest, causing him to take two to three steps backwards. Det. Kaushanskiy told § 87(2)(b) to “get the fuck out of here.” Det. Kaushanskiy then removed his taser from his holster and pointed it towards § 87(2)(b) chest for an unknown amount of time. § 87(2)(b) told Det. Kaushanskiy that he works with the NYPD as a volunteer police chaplain, and Det. Kaushanskiy responded, “I don’t give a fuck what you are.” § 87(2)(b) walked away from Det. Kaushanskiy and spoke to other officers about § 87(2)(b) arrest.

Police Officer Brian Brandefine of the Midtown South Specialized Unit Community Response Team’s BWC footage (**Board Review 05**) captures this interaction in its entirety. At runtime 03:05 PO Brandefine approaches § 87(2)(b) and Det. Kaushanskiy. § 87(2)(b) yells at Det. Kaushanskiy about § 87(2)(b) arrest. At runtime 03:23, Det. Kaushanskiy pushes § 87(2)(b) backwards with both hands, causing § 87(2)(b) to take several steps backwards into the street. At runtime 03:25, Det. Kaushanskiy is seen with his taser drawn at his side. At runtime 03:27, Det. Kaushanskiy raises his taser momentarily in § 87(2)(b) direction. He says, “Point that fucking finger at me one more time.” At runtime 03:33, another individual steps in front of § 87(2)(b) and moves him away from Det. Kaushanskiy.

In his CCRB statement (**Board Review 06**) Det. Kaushanskiy said that he did not have any interaction with § 87(2)(b) during his arrest and stood in front of the group of officers that placed him under arrest. § 87(2)(b) approached Det. Kaushanskiy and attempted to move past him towards § 87(2)(b). § 87(2)(b) told Det. Kaushanskiy that § 87(2)(b) was his brother, and Det. Kaushanskiy told him that he needed to move away while the officers placed him under arrest. § 87(2)(b) did not listen to this command and continued to try and move towards § 87(2)(b). Det. Kaushanskiy used one arm to guide § 87(2)(b) backwards several steps to move him away from the incident. His hand made contact with § 87(2)(b) stomach. Det. Kaushanskiy moved § 87(2)(b) away to create space between him and the arresting officers. § 87(2)(b) continued to yell at Det. Kaushanskiy about his brother. While Det. Kaushanskiy talked to § 87(2)(b) he held his taser in his right hand. Det. Kaushanskiy did not point his taser at § 87(2)(b) at any point during the incident and held the taser only as a precaution due to the large crowd around them.

In his CCRB interview (**Board Review 06**) Det. Kaushanskiy denied using any kind of profanity with § 87(2)(b) during their interaction. During his CCRB interview, Det. Kaushanskiy was shown the aforementioned portions of PO Brandefine’s BWC footage (**Board Review 05**) three times. Det. Kaushanskiy repeatedly denied that he used profanity during this interaction. Det. Kaushanskiy acknowledged that in the footage, he was saying something, but did not recall what he was saying. Det. Kaushanskiy believed he was telling § 87(2)(b) to “back up” and was not saying, “point that fucking finger at me one more time.” Det. Kaushanskiy acknowledged that during these portions of the footage, § 87(2)(b) was pointing his finger at Det. Kaushanskiy, but maintained that he was not the individual who said, “point that fucking finger at me one more time.” Det. Kaushanskiy acknowledged hearing profanity in the shown portions of BWC footage but maintained that it was not his voice, and he did not use profanity.

NYPD Patrol Guide Procedure 221-01 (**Board Review 07**) states that force may be used when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life. Members of service must consider criteria regarding the reasonableness of the use of force including but not limited to: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; number of subjects in comparison to the MOS; presence of hostile crowd or agitators.

NYPD Patrol Guide Procedure 221-08 (Board Review 22) states that Conducted Electrical Weapons (CEW) should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons actually present. It will often reduce the potential for injuries to members and suspects that may result from physical restraint and should be regarded as a possible alternative to such force and restraint, where practical. It is prohibited to use a CEW in situations that do not require force.

It is undisputed that Det. Kaushanskiy pushed § 87(2)(b) backwards and away from § 87(2)(b) arrest as he held his taser. BWC video captures Det. Kaushanskiy pointing his taser at § 87(2)(b) briefly as they speak. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegations A and B** be closed as **within NYPD guidelines**.

NYPD Patrol Guide Procedure 200-02 (Board Review 08) states NYPD officers must maintain a higher standard of integrity than is generally expected of others because so much is expected of them. They are to value human life, respect the dignity of each individual and render their services with courtesy and civility.

DCT Disciplinary Case No. 2015-15012 (Board Review 09) states that while officers are generally prohibited from using profanities toward civilians, they may use profanities “in the context of a dynamic situation over which [they are] attempting to gain control,” but may not do so when it “[serves] no legitimate purpose but to belittle” a civilian.

§ 87(2)(g) BWC footage depicts as Det. Kaushanskiy saying, “Point that fucking finger at me one more time.” § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegation C** be **substantiated**.

NYPD Administrative Guide Procedure 304-10 (Board Review 10) prohibits officers from making false official statements during CCRB interviews. A false official statement is defined as “an intentional statement that a member of service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made.”

Throughout Det. Kaushanskiy’s CCRB interview, he repeatedly denied using profanity in his interaction with § 87(2)(b) BWC footage of the incident captures both audio and visual confirmation that he used the phrase, “Point that fucking finger at me one more time.” Det. Kaushanskiy was given several opportunities to amend his statement following the presentation of the aforementioned BWC footage yet refused to do so. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g) It is therefore recommended that **Allegation E** be substantiated.

Allegation (D) Abuse of Authority: Captain Miguel Figueroa threatened an individual with the use of force.

PO Gilliam's BWC footage (**Board Review 11**) captures the entirety of Cpt. Figueroa's interaction. At runtime 06:23, PO Gilliam and Cpt. Figueroa approach a group of approximately 15-20 individuals near parked cars on the street. PO Gilliam yells out to them that they need to move their cars, telling one individual in particular to, "get off the car." At runtime 06:26, this individual, an unidentified male, is seen on the hood of a parked vehicle. Cpt. Figueroa moves through the cars towards the vehicle. At runtime 06:28, Cpt. Figueroa points his taser at the. At runtime 06:30, Cpt. Figueroa lowers and reholsters his taser. At runtime 06:32, the individual moves off the vehicle and walks away.

In his CCRB statement (**Board Review 12**), Cpt. Figueroa said after § 87(2)(b) was placed in handcuffs, he walked away from the officers and observed a group of individuals around several parked vehicles, blocking vehicular and pedestrian traffic. Several individuals sat on the hood of a vehicle, which was illegally parked in a bus lane. The group was a safety concern as they prevented the large crowd from properly dispersing. Cpt. Figueroa approached the group of individuals and spoke to the individual on top of the vehicle. Cpt. Figueroa told the individual to get off the hood of the vehicle, and the individual did not respond to this request. Cpt. Figueroa removed his taser and pointed it at the individual. He did not issue any verbal warnings to the individual prior to doing so. Cpt. Figueroa pointed his taser at the individual because the scene was "chaotic," and he wanted to de-escalate the situation. The individual immediately complied and got off the hood of the vehicle. Cpt. Figueroa did not have any further interaction with that individual.

NYPD Patrol Guide Procedure 221-01 (**Board Review 07**) states that force may be used when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life. Members of service must consider criteria regarding the reasonableness of the use of force including but not limited to: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; number of subjects in comparison to the MOS; presence of hostile crowd or agitators.

NYPD Patrol Guide Procedure 221-08 (**Board Review 13**) states that Conducted Electrical Weapons (CEW) should generally not be used on children, the elderly, obviously pregnant females, the frail, against subjects operating or riding on any moving device or vehicle (e.g. motorists, bicyclists, skateboarders) where the subject may fall while it is in motion or in situations where the subject may fall from an elevated surface.

It is undisputed that Cpt. Figueroa pointed his taser at an unknown individual, who sat on top of the hood of a vehicle. § 87(2)(g)

§ 87(2)(g) the individual did not exhibit any signs of being an active threat to officer or passerby safety and stepped off the hood of the vehicle within ten seconds of Cpt. Figueroa and PO Gilliam's approach. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be substantiated.

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 19**).
- Cpt. Figueroa has been a member of service for 18 years and has been a subject in 10 additional CCRB complaints and 19 additional allegations, of which three were substantiated:
 - Case #201202321 involved a substantiated allegation of stop against Cpt. Figueroa. The Board recommended Charges and the NYPD imposed Instructions.
 - § 87(2)(g)

- Det. Kaushanskiy has been a member of service for 19 years and has been a subject in seven additional CCRB complaints and 21 additional allegations, of which none were substantiated.

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of September 12, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**Board Review 21**).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 17

Investigator:	<u>Lauren Haydin</u>	<u>Inv. Lauren Haydin</u>	<u>09/20/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Benjamin Shelton</u>	<u>IM Benjamin Shelton</u>	<u>09/20/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date